



REMOVAL FROM SERVICE (SPECIAL POWERS) (SECOND AMENDMENT) ORDINANCE, 2002

Last Updated: 2002-12-01

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REMOVAL FROM SERVICE (SPECIAL POWERS) (AMENDMENT) ORDINANCE, 2002.

ORDINANCE XIX OF 2002

An Ordinance

further to amend the removal from Service (Special Powers) Ordinance, 2000

WHEREAS it is expedient further to amend the Removal from Service (Special Powers) Ordinance, 2000 (XVII of 2000), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999 and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Removal from Service (Special Powers) (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 9, Ordinance XVII of 2000. In the Removal from Service (Special Powers) Ordinance, 2000 (XVII of 2000), hereinafter referred to as the said Ordinance, in section 9, in sub-section (2) the words "within sixty days thereof" shall be omitted.

3. Amendment of section 9, Ordinance XVII of 2000. In the said Ordinance in section 10, for the full stop, at the end, a colon shall be substituted and thereafter the following proviso shall be added, namely:-

"Provided that where a representation or review petition has been preferred under section 9 but no decision has been received by or communicated to, the applicant or, as the case may be, petitioner, within a period of sixty days of its submission to the prescribed authority, he may prefer appeal to the Service Tribunal within thirty days of the expiry of the aforesaid period."
